JS 44 (Rev. 03/24)

# CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

## I. (a) PLAINTIFFS

Ngwa Nforbi, Brendan

**(b)** County of Residence of First Listed Plaintiff San Joaquin
*(EXCEPT IN U.S. PLAINTIFF CASES)*

**(c)** Attorneys *(Firm Name, Address, and Telephone Number)*

Brendan Ngwa Nforbi, Plaintiff, In Propria Persona
1455 Cat Tail Drive, Stockton, CA 95204
Tel: (209) 801-4442; E-mail: bnn.cdl@gmail.com

## DEFENDANTS

AT&T Mobility Services LLC

County of Residence of First Listed Defendant
*(IN U.S. PLAINTIFF CASES ONLY)*

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

## II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☑ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

## III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

*(For Diversity Cases Only)*

| | PTF | DEF | | PTF | DEF |
|---|---|---|---|---|---|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated *or* Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated *and* Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

## IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

| CONTRACT | TORTS | | FORFEITURE/PENALTY | BANKRUPTCY | OTHER STATUTES |
|---|---|---|---|---|---|
| ☐ 110 Insurance | **PERSONAL INJURY** | **PERSONAL INJURY** | ☐ 625 Drug Related Seizure of Property 21 USC 881 | ☐ 422 Appeal 28 USC 158 | ☐ 375 False Claims Act |
| ☐ 120 Marine | ☐ 310 Airplane | ☐ 365 Personal Injury - Product Liability | ☐ 690 Other | ☐ 423 Withdrawal 28 USC 157 | ☐ 376 Qui Tam (31 USC 3729(a)) |
| ☐ 130 Miller Act | ☐ 315 Airplane Product Liability | ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability | | **INTELLECTUAL PROPERTY RIGHTS** | ☐ 400 State Reapportionment |
| ☐ 140 Negotiable Instrument | ☐ 320 Assault, Libel & Slander | ☐ 368 Asbestos Personal Injury Product Liability | | ☐ 820 Copyrights | ☐ 410 Antitrust |
| ☐ 150 Recovery of Overpayment & Enforcement of Judgment | ☐ 330 Federal Employers' Liability | **PERSONAL PROPERTY** | **LABOR** | ☐ 830 Patent | ☐ 430 Banks and Banking |
| ☐ 151 Medicare Act | ☐ 340 Marine | ☐ 370 Other Fraud | ☐ 710 Fair Labor Standards Act | ☐ 835 Patent - Abbreviated New Drug Application | ☐ 450 Commerce |
| ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) | ☐ 345 Marine Product Liability | ☐ 371 Truth in Lending | ☐ 720 Labor/Management Relations | ☐ 840 Trademark | ☐ 460 Deportation |
| ☐ 153 Recovery of Overpayment of Veteran's Benefits | ☐ 350 Motor Vehicle | ☐ 380 Other Personal Property Damage | ☐ 740 Railway Labor Act | ☐ 880 Defend Trade Secrets Act of 2016 | ☐ 470 Racketeer Influenced and Corrupt Organizations |
| ☐ 160 Stockholders' Suits | ☐ 355 Motor Vehicle Product Liability | ☐ 385 Property Damage Product Liability | ☐ 751 Family and Medical Leave Act | **SOCIAL SECURITY** | ☐ 480 Consumer Credit (15 USC 1681 or 1692) |
| ☐ 190 Other Contract | ☐ 360 Other Personal Injury | | ☐ 790 Other Labor Litigation | ☐ 861 HIA (1395ff) | ☐ 485 Telephone Consumer Protection Act |
| ☐ 195 Contract Product Liability | ☐ 362 Personal Injury - Medical Malpractice | | ☐ 791 Employee Retirement Income Security Act | ☐ 862 Black Lung (923) | ☐ 490 Cable/Sat TV |
| ☐ 196 Franchise | | | | ☐ 863 DIWC/DIWW (405(g)) | ☐ 850 Securities/Commodities/ Exchange |
| | | | | ☐ 864 SSID Title XVI | ☐ 890 Other Statutory Actions |
| **REAL PROPERTY** | **CIVIL RIGHTS** | **PRISONER PETITIONS** | | ☐ 865 RSI (405(g)) | ☐ 891 Agricultural Acts |
| ☐ 210 Land Condemnation | ☐ 440 Other Civil Rights | **Habeas Corpus:** | **IMMIGRATION** | | ☐ 893 Environmental Matters |
| ☐ 220 Foreclosure | ☐ 441 Voting | ☐ 463 Alien Detainee | ☐ 462 Naturalization Application | **FEDERAL TAX SUITS** | ☐ 895 Freedom of Information Act |
| ☐ 230 Rent Lease & Ejectment | ☑ 442 Employment | ☐ 510 Motions to Vacate Sentence | ☐ 465 Other Immigration Actions | ☐ 870 Taxes (U.S. Plaintiff or Defendant) | ☐ 896 Arbitration |
| ☐ 240 Torts to Land | ☐ 443 Housing/ Accommodations | ☐ 530 General | | ☐ 871 IRS—Third Party 26 USC 7609 | ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision |
| ☐ 245 Tort Product Liability | ☐ 445 Amer. w/Disabilities - Employment | ☐ 535 Death Penalty | | | ☐ 950 Constitutionality of State Statutes |
| ☐ 290 All Other Real Property | ☐ 446 Amer. w/Disabilities - Other | **Other:** ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement | | | |
| | ☐ 448 Education | | | | |

## V. ORIGIN *(Place an "X" in One Box Only)*

- ☑ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District *(specify)*
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

## VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
15 U.S.C. § 1681b(b)(3)(A) (jurisdiction: 28 U.S.C. §§ 1331, 1367)

Brief description of cause:
Employment consumer-report adverse action without a pre-adverse copy; unauthorized employment use of Penal Code § 290.46 information.

## VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

**DEMAND $** According to proof

CHECK YES only if demanded in complaint:
**JURY DEMAND:** ☑ Yes ☐ No

## VIII. RELATED CASE(S) IF ANY

*(See instructions):*

JUDGE Hon. Dale A. Drozd (Sacramento) DOCKET NUMBER 2:26-cv-02847; 2:26-cv-02881

DATE 09/15/2026

SIGNATURE OF ATTORNEY OF RECORD

**FOR OFFICE USE ONLY**

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

# INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

**I.(a) Plaintiffs-Defendants.** Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

**(b) County of Residence.** For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

**(c) Attorneys.** Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

**II. Jurisdiction.** The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

**III. Residence (citizenship) of Principal Parties.** This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

**IV. Nature of Suit.** Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

**V. Origin.** Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
**PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7.** Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

**VI. Cause of Action.** Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

**VII. Requested in Complaint.** Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

**VIII. Related Cases.** This section of the JS 44 is used to reference related cases, if any. If there are related cases, insert the docket numbers and the corresponding judge names for such cases.

**Date and Attorney Signature.** Date and sign the civil cover sheet.

AO 239 (Rev. 12/13) Application to Proceed in District Court Without Prepaying Fees or Costs (Long Form)

# UNITED STATES DISTRICT COURT

for the

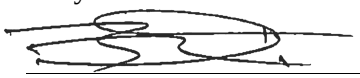
Eastern District of California

| | | |
|---|---|---|
| Brendan Ngwa Nforbi | ) | |
| *Plaintiff/Petitioner* | ) | |
| v. | ) | Civil Action No. |
| AT&T Mobility Services LLC | ) | |
| *Defendant/Respondent* | ) | |

## APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS (Long Form)

**Affidavit in Support of the Application**

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested. I declare under penalty of perjury that the information below is true and understand that a false statement may result in a dismissal of my claims.

Signed: 

**Instructions**

Complete all questions in this application and then sign it. Do not leave any blanks: if the answer to a question is "0," "none," or "not applicable (N/A)," write that response. If you need more space to answer a question or to explain your answer, attach a separate sheet of paper identified with your name, your case's docket number, and the question number.

Date: September 15, 2026

1. For both you and your spouse estimate the average amount of money received from each of the following sources during the past 12 months. Adjust any amount that was received weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate. Use gross amounts, that is, amounts before any deductions for taxes or otherwise.

| Income source | Average monthly income amount during the past 12 months | | Income amount expected next month | |
|---|---|---|---|---|
| | You | Spouse | You | Spouse |
| Employment | $ 0 | $ 0 | $ 0 | $ 0 |
| Self-employment | $ 0 | $ 0 | $ 0 | $ 0 |
| Income from real property *(such as rental income)* | $ 0 | $ 0 | $ 0 | $ 0 |
| Interest and dividends | $ 0 | $ 0 | $ 0 | $ 0 |
| Gifts | $ 0 | $ 0 | $ 0 | $ 0 |
| Alimony | $ 0 | $ 0 | $ 0 | $ 0 |
| Child support | $ 0 | $ 0 | $ 0 | $ 0 |

| | | | | |
|---|---|---|---|---|
| Retirement *(such as social security, pensions, annuities, insurance)* | $ 0 | $ 0 | $ 0 | $ 0 |
| Disability *(such as social security, insurance payments)* | $ 0 | $ 0 | $ 0 | $ 0 |
| Unemployment payments | $ 0 | $ 0 | $ 0 | $ 0 |
| Public-assistance *(such as welfare)* | $ 0 | $ 0 | $ 0 | $ 0 |
| Other *(specify)*: | $ 0 | $ 0 | $ 0 | $ 0 |
| **Total monthly income:** | $ 0 | $ 0 | $ 0 | $ 0 |

2. List your employment history for the past two years, most recent employer first. *(Gross monthly pay is before taxes or other deductions.)*

| **Employer** | **Address** | **Dates of employment** | **Gross monthly pay** |
|---|---|---|---|
| Unemployed | N/A | N/A | $ 0 |
| N/A | N/A | N/A | $ 0 |

3. List your spouse's employment history for the past two years, most recent employer first. *(Gross monthly pay is before taxes or other deductions.)*

| **Employer** | **Address** | **Dates of employment** | **Gross monthly pay** |
|---|---|---|---|
| N/A | N/A | N/A | $ 0 |
| N/A | N/A | N/A | $ 0 |
| N/A | N/A | N/A | $ 0 |

4. How much cash do you and your spouse have? $ 0

Below, state any money you or your spouse have in bank accounts or in any other financial institution.

| **Financial institution** | **Type of account** | **Amount you have** | **Amount your spouse has** |
|---|---|---|---|
| N/A | N/A | $ 0 | $ 0 |
| N/A | N/A | $ 0 | $ 0 |
| N/A | N/A | $ 0 | $ 0 |

If you are a prisoner, you must attach a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months in your institutional accounts. If you have multiple accounts, perhaps because you have been in multiple institutions, attach one certified statement of each account.

5. List the assets, and their values, which you own or your spouse owns. Do not list clothing and ordinary household furnishings.

| **Assets owned by you or your spouse** | |
|---|---|
| Home *(Value)* | $ 0 |
| Other real estate *(Value)* | $ 0 |
| Motor vehicle *#1 (Value)* | $ 0 |
| Make and year: N/A | |
| Model: N/A | |
| Registration #: N/A | |
| Motor vehicle *#2 (Value)* | $ 0 |
| Make and year: N/A | |
| Model: N/A | |
| Registration #: N/A | |
| Other assets *(Value)* | $ 0 |
| Other assets *(Value)* | $ 0 |

6. State every person, business, or organization owing you or your spouse money, and the amount owed.

| **Person owing you or your spouse money** | **Amount owed to you** | **Amount owed to your spouse** |
|---|---|---|
| N/A | **$** N/A | **$** 0 |
| N/A | **$** N/A | **$** 0 |
| N/A | **$** N/A | **$** 0 |

7. State the persons who rely on you or your spouse for support.

| **Name** (or, if under 18, initials only) | **Relationship** | **Age** |
|---|---|---|
| N/A | 0 | 0 |
| N/A | 0 | 0 |
| N/A | 0 | 0 |

8. Estimate the average monthly expenses of you and your family. Show separately the amounts paid by your spouse. Adjust any payments that are made weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate.

| | You | Your spouse |
|---|---|---|
| Rent or home-mortgage payment *(including lot rented for mobile home)*<br>Are real estate taxes included? ❒ Yes ☑ No<br>Is property insurance included? ❒ Yes ☑ No | $ 0 | $ 0 |
| Utilities *(electricity, heating fuel, water, sewer, and telephone)* | $ 0 | $ 0 |
| Home maintenance *(repairs and upkeep)* | $ 0 | $ 0 |
| Food | $ 0 | $ 0 |
| Clothing | $ 0 | $ 0 |
| Laundry and dry-cleaning | $ 0 | $ 0 |
| Medical and dental expenses | $ 0 | $ 0 |
| Transportation *(not including motor vehicle payments)* | $ 0 | $ 0 |
| Recreation, entertainment, newspapers, magazines, etc. | $ 0 | $ 0 |
| Insurance *(not deducted from wages or included in mortgage payments)* | | |
| Homeowner's or renter's: N/A | $ 0 | $ 0 |
| Life: N/A | $ 0 | $ 0 |
| Health: N/A | $ 0 | $ 0 |
| Motor vehicle: N/A | $ 0 | $ 0 |
| Other: N/A | $ 0 | $ 0 |
| Taxes *(not deducted from wages or included in mortgage payments) (specify):* | $ 0 | $ 0 |
| Installment payments | | |
| Motor vehicle: N/A | $ 0 | $ 0 |
| Credit card *(name)*: N/A | $ 0 | $ 0 |
| Department store *(name)*: N/A | $ 0 | $ 0 |
| Other: N/A | $ 0 | $ 0 |
| Alimony, maintenance, and support paid to others | $ 0 | $ 0 |

| | | |
|---|---|---|
| Regular expenses for operation of business, profession, or farm *(attach detailed statement)* | **$** 0 | **$** 0 |
| Other *(specify)*: N/A | **$** 0 | **$** 0 |
| **Total monthly expenses:** | **$** 0 | **$** 0 |

9. Do you expect any major changes to your monthly income or expenses or in your assets or liabilities during the next 12 months?

❒ Yes ☑ No If yes, describe on an attached sheet.

10. Have you spent — or will you be spending — any money for expenses or attorney fees in conjunction with this lawsuit? ❒ Yes ☑ No

If yes, how much? $ N/A

11. Provide any other information that will help explain why you cannot pay the costs of these proceedings.
I am unemployed and cannot pay the $405 filing fee. This is an employment action. On May 28, 2026 I accepted AT&T's written Lodi Retail Sales Consultant offer; AT&T rescinded it the same day after a First Advantage screen. I have no wages from that job.

12. Identify the city and state of your legal residence.
Stockton, California

Your daytime phone number: (209) 801-4442

Your age: N/A Your years of schooling: N/A

Last four digits of your social-security number: N/A

# UNITED STATES DISTRICT COURT

for the

Eastern District of California

| | | |
|---|---|---|
| Brendan Ngwa Nforbi<br><br>*Plaintiff(s)*<br>v.<br>AT&T Mobility Services LLC, a Delaware limited liability company<br><br>*Defendant(s)* | ) | Civil Action No. |

**SUMMONS IN A CIVIL ACTION**

To: *(Defendant's name and address)* AT&T Mobility Services LLC
c/o CSC-Lawyers Incorporating Service
2710 Gateway Oaks Drive, Suite 150N
Sacramento, CA 95833

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Brendan Ngwa Nforbi
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442 — E-mail: bnn.cdl@gmail.com

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

*CLERK OF COURT*

Date: _____

_____
*Signature of Clerk or Deputy Clerk*

Civil Action No.

**PROOF OF SERVICE**

***(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))***

This summons for *(name of individual and title, if any)* AT&T Mobility Services LLC was received by me on *(date)* _____ .

❒ I personally served the summons on the individual at *(place)* _____ on *(date)* _____ ; or

❒ I left the summons at the individual's residence or usual place of abode with *(name)* _____ , a person of suitable age and discretion who resides there, on *(date)* _____ , and mailed a copy to the individual's last known address; or

❒ I served the summons on *(name of individual)* _____ , who is designated by law to accept service of process on behalf of *(name of organization)* _____ on *(date)* _____ ; or

❒ I returned the summons unexecuted because _____ ; or

❒ Other *(specify):*

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
*Server's signature*

_____
*Printed name and title*

_____
*Server's address*

Additional information regarding attempted service, etc:

Print Save As... Reset

**BRENDAN NGWA NFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**EASTERN DISTRICT OF CALIFORNIA -- SACRAMENTO DIVISION**

| | |
|---|---|
| **BRENDAN NGWA NFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**AT&T MOBILITY SERVICES LLC, a Delaware limited liability company,**<br><br>Defendant. | Case No. _____<br><br>**COMPLAINT FOR DAMAGES**<br><br>(1) FCRA, 15 U.S.C. § 1681b(b)(3)(A);<br>(2) ICRAA, Civ. Code §§ 1786.40, 1786.50;<br>(3) Penal Code § 290.46(j)<br><br>*[Jury Trial Demanded]* |

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:

## I. NATURE OF THE ACTION

1. On May 28, 2026, AT&T issued Plaintiff an official written offer for a Retail Sales Consultant position at 2439 West Kettleman Lane, Lodi, California.

2. The offer specified $24.95 per hour, targeted variable compensation of $13,700 annually prorated for part-time hours, reporting manager Orville R. Bell, and a tentative June 15, 2026 start date.

3. Plaintiff accepted through Workday and began onboarding.

4. At approximately 10:19 a.m., First Advantage sent Plaintiff the employment-screening task AT&T had ordered for "AT&T Non Management," account 132156.

5. At approximately 12:23 p.m., AT&T recruiter Richard Patterson texted that the manager no longer wanted to proceed with Plaintiff's offer because Plaintiff did not pass Spanish and a Spanish speaker was needed.

6. Plaintiff had not received a copy of any consumer report or Summary of Rights before the 12:23 p.m. rescission.

7. Plaintiff alleges on information and belief that, before the rescission, First Advantage furnished AT&T a consumer-report result concerning Plaintiff and that AT&T based its decision in whole or in part on that report.

8. Plaintiff further alleges on information and belief that the report contained information disclosed pursuant to California Penal Code § 290.46, including Plaintiff's California registry information, and that AT&T used that information for an employment purpose.

9. Plaintiff does not allege that the Spanish explanation was necessarily false. The timing and sequence create competing explanations that can be resolved through AT&T's, LTI's, and First Advantage's records.

## II. JURISDICTION AND VENUE

10. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 because Count One arises under the Fair Credit Reporting Act.

11. This Court has supplemental jurisdiction under 28 U.S.C. § 1367(a) over Counts Two and Three because they arise from the same offer, screening, and employment decision.

12. Plaintiff does not presently invoke diversity jurisdiction. AT&T Mobility Services LLC is a limited liability company, and the citizenship of every member has not been established.

13. Plaintiff has Article III standing. He alleges a concrete economic injury—the loss of the accepted Lodi employment and its documented $24.95 hourly compensation—fairly traceable to the report-based employment action alleged and redressable by damages.

14. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events occurred in Lodi, San Joaquin County, California.

15. Under Eastern District of California Local Rule 120(d), San Joaquin County civil actions are commenced on the Sacramento side of the District.

## III. PARTIES

16. Plaintiff Brendan Ngwa Nforbi is a natural person and California resident.

17. Defendant AT&T Mobility Services LLC is alleged to be the legal entity that issued or controlled requisition R-106742 and the associated employment screening and decision.

18. Plaintiff will confirm the exact employing/report-user entity from AT&T and First Advantage records before filing. He does not name AT&T Inc. merely because it is the parent brand.

19. First Advantage Background Services Corp. is the confirmed screening vendor in this transaction but is not presently named as a defendant absent an independent CRA violation.

20. Richard Patterson and Orville R. Bell are percipient witnesses, not presently named defendants.

## IV. APPLICATION, SPANISH ASSESSMENT, AND OFFER

21. On May 16, 2026, Plaintiff applied for requisition R-106742, Bilingual Spanish Retail Sales Consultant at the Lodi location.

22. Plaintiff also applied for R-107776, a non-bilingual Retail Sales Consultant position at Stockton Pacific.

23. Both applications advanced through AT&T's interview process.

24. On May 22, Language Testing International advised Plaintiff that AT&T had requested an ACTFL OPIc Spanish-speaking assessment.

25. The assessment window expired May 25, 2026, and LTI stated that the rating would be supplied to AT&T's recruiting system.

26. Plaintiff's present file does not contain the score, recording, passing threshold,

timestamp when AT&T received the score, or internal decision notes.

27. On May 28 at approximately 10:13 a.m., Workday sent Plaintiff a “Welcome to the team” message and official offer for R-106742.

28. The written offer identified the role, manager, Lodi location, $24.95 hourly rate, targeted variable compensation, and tentative June 15 start.

29. The offer listed standardized background checks among its contingencies.

30. The two-page offer in Plaintiff's present file did not identify passage of the earlier Spanish assessment as an outstanding post-offer contingency.

31. Plaintiff accepted the offer through Workday.

32. At approximately 10:15 through 10:17 a.m., Workday issued onboarding tasks concerning documents, government identifiers, and personal information.

## V. FIRST ADVANTAGE SCREENING AND RESCISSION

33. At approximately 10:19 a.m., First Advantage sent Plaintiff an employment-screening task on behalf of “AT&T Non Management,” account 132156.

34. This transaction-specific communication confirms AT&T had initiated a First Advantage employment-screening workflow.

35. The invitation does not, by itself, establish when First Advantage completed a report, when any result became available, what the report contained, or when AT&T accessed

it.

36. At approximately 12:23 p.m., Patterson texted Plaintiff that the manager no longer wanted to proceed with “your offer” because Plaintiff did not pass Spanish and a Spanish speaker was needed.

37. That text is AT&T's contemporaneous stated reason. Plaintiff does not concede that the assessment was actually failed, that the result independently required rejection, or that it was the sole cause of the reversal.

38. Before 12:23 p.m., AT&T did not provide Plaintiff a copy of a consumer report or written Summary of Rights.

39. At the adverse action, AT&T did not advise Plaintiff that an investigative consumer report had been obtained and did not provide First Advantage's name and address as an adverse-action notice under Civil Code § 1786.40.

## VI. FACTUAL BASIS FOR REPORT RECEIPT AND USE

40. Plaintiff alleges on information and belief that First Advantage furnished AT&T a consumer-report result concerning Plaintiff before the 12:23 p.m. rescission and that AT&T based the rescission in whole or in part on that report.

41. The factual basis includes the formal offer and acceptance; immediate onboarding; AT&T's initiation of a First Advantage screening at 10:19 a.m.; the reversal approximately two hours later; the offer's express background-check contingency; and the absence of the required pre-adverse report and Summary of Rights.

42. Whether a report or partial report actually existed and was furnished before 12:23 p.m. is recorded in First Advantage's order-generation, component-completion, transmission, and AT&T-access logs.

43. Plaintiff does not plead the mere screening invitation itself as a “consumer report” or as an adverse result.

## VII. FACTUAL BASIS FOR REGISTRY SOURCE AND USE

44. At the time of the AT&T screening, Plaintiff was publicly listed on California's Megan's Law internet website.

45. On information and belief, the same CRA, screening this same consumer in the same period, returned California-registry source fields. Plaintiff does not allege that any other employer's report is AT&T's report, and he does not attach or describe those reports as if they were.

46. On information and belief, the AT&T-specific report contained information concerning Plaintiff disclosed pursuant to Penal Code § 290.46.

47. On information and belief, AT&T received, accessed, considered, and used that information for a purpose relating to employment.

48. Plaintiff does not possess AT&T's transaction-specific report and does not allege its source-field wording as known fact. The source wording, component status, adjudication code, transmission time, access logs, and AT&T reason codes are within AT&T's and First Advantage's systems.

## VIII. THE SPANISH EXPLANATION DOES NOT ELIMINATE THE PLEADED REPORT THEORY

49. Plaintiff acknowledges the Spanish explanation and does not ask the Court to assume it was pretext merely because screening also occurred.

50. The following facts remain unresolved: the actual LTI score, the passing standard, when AT&T received the score, whether the score was known before the 10:13 offer, whether failure automatically required disqualification, whether First Advantage furnished a report before 12:23, and every reason actually considered by the decisionmaker.

51. The FCRA does not require a consumer report to be the sole reason for adverse action; § 1681b(b)(3)(A) applies when the action is based in whole or in part on the report.

52. If AT&T proves that the Spanish result independently and inevitably disqualified Plaintiff before any report result was furnished or used, that evidence may defeat causation. The present complaint does not conceal that defense.

## IX. SOURCE-SPECIFIC § 290.46 DEFENSES

53. Plaintiff does not allege that AT&T was barred from considering lawfully and independently obtained conviction information.

54. The § 290.46 claim is based on alleged use of information disclosed pursuant to § 290.46 itself.

55. If the AT&T-specific report is properly considered and contradicts Plaintiff's information-and-belief source allegation, the claim must conform to that document.

## X. COUNT ONE

**Fair Credit Reporting Act — 15 U.S.C. § 1681b(b)(3)(A)**

56. Plaintiff realleges paragraphs 1 through 55.

57. Plaintiff was a consumer, AT&T procured or caused a consumer report to be procured for employment purposes, and AT&T was a person using the report within the meaning of the FCRA.

58. Before taking adverse action based in whole or in part on an employment consumer report, § 1681b(b)(3)(A) requires the person intending to take the action to provide the consumer a copy of the report and a written description of FCRA rights.

59. On information and belief, AT&T's rescission was based in whole or in part on a consumer report furnished by First Advantage.

60. AT&T did not provide Plaintiff a copy of that report or the written Summary of Rights before the 12:23 p.m. adverse action.

61. AT&T thereby violated § 1681b(b)(3)(A).

62. The count is timely without delayed discovery because the alleged violation occurred May 28, 2026.

63. AT&T's noncompliance was negligent and, on proof, willful. AT&T's own First Advantage workflow referenced FCRA disclosure and authorization immediately before the

alleged adverse action. Acting without first providing the report copy is reckless disregard if that pre-adverse copy was the policy on the form. Willfulness is pleaded as a damages theory under 15 U.S.C. § 1681n, not as a separate count.

64. Plaintiff seeks relief authorized by 15 U.S.C. §§ 1681n and 1681o according to proof.

## XI. COUNT TWO

**California Investigative Consumer Reporting Agencies Act**

**Civil Code §§ 1786.40, 1786.50**

65. Plaintiff realleges paragraphs 1 through 55.

66. On information and belief, the First Advantage employment background report was an investigative consumer report under ICRAA.

67. Civil Code § 1786.40 requires the user, when employment is denied under circumstances in which an investigative consumer report was obtained, to advise the consumer and supply the name and address of the investigative consumer reporting agency.

68. On information and belief, AT&T denied the employment under circumstances in which it had obtained the First Advantage investigative consumer report.

69. AT&T did not provide the § 1786.40 advice at the time of the rescission.

70. This alleged omission is distinct from Count One's federal pre-adverse omission.

71. The count is timely without delayed discovery because the alleged conduct occurred May 28, 2026.

72. Plaintiff seeks the remedies authorized by Civil Code § 1786.50 according to proof.

## XII. COUNT THREE

**Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46**

**Penal Code § 290.46(j)(2)(E), (j)(4)(A)**

73. Plaintiff realleges paragraphs 1 through 55.

74. Plaintiff is a person as to whom information is disclosed through California's Megan's Law internet website.

75. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for purposes relating to employment except where statutorily authorized.

76. On information and belief, First Advantage furnished AT&T information concerning Plaintiff disclosed pursuant to § 290.46.

77. On information and belief, AT&T received, accessed, considered, and used that information for an employment purpose.

78. Plaintiff alleges the information was a substantial factor in rescinding the accepted Lodi offer.

79. Plaintiff is unaware of another law authorizing use of § 290.46-disclosed information for this retail-sales position.

80. The alleged use occurred May 28, 2026. A September 2026 filing is timely under either a potentially applicable one-year penalty characterization or a three-year statutory-liability characterization. Plaintiff therefore need not ask the Court to resolve that characterization at the pleading stage.

81. AT&T thereby violated Penal Code § 290.46(j)(2)(E).

82. Plaintiff seeks the remedies authorized by § 290.46(j)(4)(A), without duplicative recovery.

83. Plaintiff does not presently seek preventive relief under § 290.46(j)(4)(B).

## XIII. DAMAGES

84. Plaintiff lost an accepted position offered at $24.95 per hour and lost the opportunity to earn targeted variable compensation according to the offer and proof.

85. The offer does not state guaranteed weekly hours. Plaintiff does not invent them.

86. Plaintiff seeks only damages and statutory relief legally recoverable under the three opening causes of action and will avoid double recovery.

## XIV. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests:

A. Actual and compensatory damages according to proof;

B. Relief authorized by 15 U.S.C. §§ 1681n and 1681o;

C. Relief authorized by Civil Code § 1786.50;

D. Relief authorized by Penal Code § 290.46(j)(4)(A);

E. Taxable costs and attorney's fees only where authorized, including if counsel later appears;

F. Prejudgment and postjudgment interest as allowed by law; and

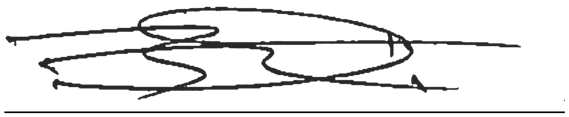
G. Such other nonduplicative relief as the Court deems proper.

## XV. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 15, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona